

4. Plaintiff is ordered to prepare and e-file a proposed order conforming to this tentative ruling, attaching this tentative ruling as an exhibit.

20. 9:01 AM CASE NUMBER: C23-01292

CASE NAME: PATRICIA KUBICHEK VS. MICHAEL YRUETA

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF PATRICIA KUBICHEK'S DEPOSITION**

FILED BY: KUBICHEK, PATRICIA

TENTATIVE RULING:

Summary

This matter comes before the Court on Defendant Accor Management US, Inc. dba Fairmont Hotels' ("Accor") Motion to Compel the Deposition of Plaintiff Patricia Kubichek ("Plaintiff") and for sanctions. The Motion is **granted** in its entirety, as set forth herein.

Background

Plaintiff alleges that she sustained injuries and damages after being struck in the head by a lava rock thrown by a minor hotel guest while she was at or near the beach adjacent to the Fairmont Hotel operated by Accor. Plaintiff initiated this action against Accor and the minor's parents, Defendants Michael and Leslie Yrueta (collectively, "Yruetas").

Accor served a notice of deposition on Plaintiff for November 20, 2023. However, the deposition was repeatedly canceled by Plaintiff's counsel, Flavio Cajina. On February 20, 2024, the Court ordered Plaintiff's deposition to be completed by June 18, 2024. By Court order dated April 30, 2025, Mr. Cajina was disqualified from representing Plaintiff at her deposition.

On July 11, 2025, Accor served its Third Amended Notice of Taking Deposition for August 5, 2025 (Dellecker Declaration, Exhibit A). Plaintiff filed no objection to the Notice. Accor contends that Plaintiff and her counsel failed to cooperate with the noticed deposition and did not meaningfully meet and confer to propose an alternative date. To date, Plaintiff's deposition remains untaken.

On August 29, 2025, Accor filed the present Motion to Compel, supported by a Notice, Memorandum of Points and Authorities, Declaration of Counsel Catherine L. Dellecker, and a proposed order. On December 1, 2025, the Yruetas joined Accor's motion.

Plaintiff filed her opposition on December 4, 2025, supported by the Declaration of Counsel Fulvio F. Cajina. Mr. Cajina asserts that as of March 26, 2025, the Court disqualified him from taking or defending Plaintiff's deposition. He further alleges that Accor unilaterally noticed Plaintiff's deposition for August 4, 2025, without conferring with him. Mr. Cajina states he was unable to secure counsel to represent Plaintiff at the deposition and that Plaintiff was unavailable and traveling at the time, while he was engaged in a multi-week federal trial that concluded on August 26, 2025. He offered to reschedule the deposition for September, but Accor declined to accommodate his trial schedule and instead filed this motion. Plaintiff argues that Accor failed to meet and confer in good faith. The Court has considered Plaintiff's additional arguments.

On December 12, 2025, Accor filed its reply, requesting that the Court order Plaintiff to appear for her deposition and produce the records requested in the deposition notice. Accor disputes Plaintiff's claim

that she agreed to a September deposition, asserting that Plaintiff was still seeking counsel at the time.

Analyses

A. Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act (Code Civ. Proc. §§ 2016.010–2036.050). The Act provides litigants with the right to broad discovery (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402). Under Code Civ. Proc. § 2017.010, any party may obtain discovery regarding any non-privileged matter relevant to the subject matter of the action or to the determination of any motion, provided the matter is admissible in evidence or reasonably calculated to lead to the discovery of admissible evidence (see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402). The Court may limit discovery where the burden, expense, or intrusiveness outweighs the likelihood that the information sought will lead to admissible evidence (Code Civ. Proc. § 2017.020(a)).

B. Duty to Meet and Confer

Parties to a discovery dispute must meet and confer in good faith to informally resolve the dispute (Cal. Code Civ. Proc. §§ 2016.040, 2030.300; *Golf & Tennis Pro Shop, Inc. v. Sup. Ct. (Frye)* (2022) 84 Cal.App.5th 127, 138). The Contra Costa County Superior Court Local Rules also require meet-and-confer efforts (L.R. 2.121(e)) and mandate that motions be filed sparingly and in good faith (L.R. 2.122(c)).

Here, the record shows that Plaintiff's counsel failed to file timely objections to the deposition notice and made, at best, perfunctory attempts to meet and confer. While Mr. Cajina cites his trial schedule and efforts to secure replacement counsel, the Court finds his efforts insufficient to constitute a reasonable and good faith attempt to resolve this discovery dispute.

C. Depositions

Under Cal. Code Civ. Proc. § 2025.210, any party may serve a deposition notice on another party. Proper notice compels the deponent to appear, testify, and produce records (Code Civ. Proc. §§ 2025.220, 2025.240, 2025.270, 2025.280(a)). Written objections must be served at least three calendar days before the deposition (Code Civ. Proc. § 2025.410(a), (b)). If a deponent fails to appear or produce documents without valid objections, the noticing party may move to compel attendance and production (Code Civ. Proc. § 2025.450(a)). The burden shifts to the responding party to justify objections (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255).

Here, Plaintiff received 25 days' notice of her deposition and failed to serve timely objections, thereby waiving them. The record confirms that Plaintiff's counsel did not make her available for deposition as of the hearing date. Notably, at the December 16, 2025, case management conference, Mr. Cajina represented that he had secured counsel for Plaintiff's deposition. Accor's counsel, Ms. Dellecker, stated this was the first such communication.

Ruling

Based on the foregoing, the Court finds good cause to grant Accor's Motion to Compel. Plaintiff is ordered to appear for her deposition no later than January 16, 2026, and to produce all requested

documents within ten (10) days from the date of this order. Plaintiff and/or her counsel of record, Flavio Cajina, are ordered to pay sanctions in the amount of \$1,000 to Accor pursuant to Cal. Code Civ. Proc. § 2025.450(g)(1), payable within ten (10) days of this order. The proposed order lodged on August 29, 2025, is approved and will be executed.

21. 9:01 AM CASE NUMBER: C22-01951

CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT JOHN MUIR HEALTH'S FORM INTERROGATORIES, SET THREE**

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

Summary

This tentative ruling is issued for Lines 21, 22 and 23. Defendant John Muir ("Defendant") filed the following discovery Motions against Plaintiff Dianna Jiminian ("Plaintiff"):

1. Motion to Compel Further Responses to Form Interrogatories, Set. 2, filed October 13, 2025
2. Motion to Compel Further Responses to Request for Admissions, Set 2, filed October 14, 2025
3. Motion to Compel Further Responses to Defendant's Form Interrogatories, Set 3, filed October 15, 2025

The hearing on these motions were scheduled to be heard in March. The Court advanced the hearing of these Motion to December 17, 2025 in preparation for the trial of this matter, the first phase of which is scheduled for January 12, 2025. The Court rules on each of these motions as set forth below.

Background

- On September 21, 2022, Plaintiff, filed the operative Complaint, in which she alleges she slipped and fell while working as a traveling nurse at Defendant John Muir Health, in Concord, California.
- On July 16, 2025, Defendant served Form Interrogatories, Set Two, and Requests for Admissions, Set Two via electronic service on Plaintiff. On August 19, 2025, Plaintiff served responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On August 20, 2025, counsel for Defendant sent meet and confer correspondence to Plaintiff regarding insufficient and non-code compliant responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On August 20, 2025 Defendant served Form Interrogatories, Set Three and Requests for Admission, Set Three.
- On August 29, 2025, Plaintiff served amended responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On September 11, 2025, counsel for Defendant sent another meet and confer correspondence to Plaintiff regarding continued insufficient and non-code compliant responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- According to Defendant, Plaintiff refused to issue amended responses. Accordingly, defense